RECALLING Article 28(b) of the Convention on the International Maritime Organization con cerning the functions of the Committee, NOTING resolution MSC.88(71) by which it adopted the International Code for the Safe Carriage of Packaged Irradiated Nuclear Fuel, Pluton ium and High-Level Radioactive Wastes on Board Ships (hereinafter referred to as “the IN F Code”), which has become mandatory under chapter VII of the International Convention f or the Safety of Life at Sea, 1974 (hereinafter referred to as “the Convention”), NOTING ALSO article VIII(b) and regulation VII/14.1 of the Convention concerning the procedure for amending the INF Code, - referred to as “the Convention”), NOTING ALSO article VIII(b) and regulation VII/14.1 of the Convention concerning the procedure for amending the I NF Code, HAVING CONSIDERED, at its eighty-third session, amendments to the INF Code, pro posed and circulated in accordance with article VIII(b)(i) of the Convention, 1.

ADOPTS, in accordance with article VIII(b)(iv) of the Convention, amendments to the INF Code, the text of which is set out in the Annex to the present resolution; 2.

DETERMINES, in accordance with article VII I(b)(vi)(2)(bb) of the Convention, that the a mendments shall be deemed to have been accep ted on 1 January 2009, unless, prior to tha t date, more than one third of the Contracting Go vernments to the Convention or Contrac ting Governments the combined merchant fleets of wh ich constitute not less than 50% of the gross tonnage o